

B E T W E E N :

MR R MINHAS

Claimant

-and-

LONZA BIOLOGICS PLC

Respondent

GROUND OF RESISTANCE

1. The Respondent is a pharmaceutical manufacturing company.
2. The Claimant was employed by the Respondent in its Purification department as a Biotechnologist between 21 July 2025 and 21 January 2026. The Claimant's employment with the Respondent was terminated following his failure to pass his extended probationary period on account of having failed to meet the Respondent's reasonable expectations. The Claimant did not resign and was not constructively dismissed, as alleged.
3. At all material times the Claimant reported to Razwan Jamil (DSP Plant Lead).

Lack of proper particularisation

4. The Respondent is unable to respond to the to the Claimant's claims and allegations without first receiving further and better particulars from the Claimant.

Disability

5. While it is admitted that the Claimant alleged to the Respondent that he suffered from impairments or symptoms at various times, it is not admitted and accordingly the Claimant is put to proof that he was disabled for the purposes of s. 6 Equality Act 2010 when read with Sch 1 Equality Act 2010.
6. It is denied that the Claimant was subjected to systematic unlawful treatment after informing the Respondent of his impairments or at all. It is further denied that the Respondent subjected him to any form of detrimental, discriminatory or otherwise unlawful treatment at any time during his employment, either as may be alleged or at all. The Claimant has failed to plead any unlawful treatment by the Respondent caused by or linked in any way to the disclosure of his alleged disability and he is put to strict proof thereof accordingly.

Probation and targets - s. 15 Equality Act 2010

7. On 13 September 2025, Mr Jamil met with the Claimant to review his probation and following completion of this meeting Mr Jamil extended the Claimant's 3-month probationary period to 21 January 2026. The Claimant and Mr Jamil signed the probationary review form to confirm their agreement with what had been discussed and the steps that the Claimant would need to complete to successfully pass his probation.
8. Mr Jamil recorded on the probationary review form that the Claimant's Biotech 1 Training had been paused so he could support buffer preparation due to a lack of resources and that the Claimant had not completed all the necessary training for him to pass his probation. It is denied that Mr Jamil's decision to extend probation was because of anything arising from the Claimant's alleged disability.

9. Mr Jamil also recorded on the probationary review form the action steps the Claimant would be expected to complete to successfully pass his probation, which were:

- (a) *Be signed off on Akta set-up (i.e. completion of the AKTA Ready module).* AKTA Ready is a chromatography system used regularly within the downstream processing plant in which the Claimant was employed. The objective set by Mr Jamil required the Claimant to undergo training on the preparation steps relevant to that system, to be observed, to perform the steps under supervision, and to be certified as capable of performing the process independently. Completion of the AKTA Ready module was therefore an essential requirement of the Claimant's role.
- (b) *Maintain core CSOD reads at 95%.* Cornerstone On Demand (**CSOD**) is the system that the Respondent uses for storing key policies and procedures, for notifying employees when those documents are updated, and for tracking when employees have read them. Some of the documents are regarded as "core" documents and CSOD instructs employees to read those documents within a 10-day training window before the updated policy will take effect. CSOD is therefore a means for the Respondent to ensure that employees are appropriately trained and, equally, to track and evidence completion of training. Employees having not read the core documents are regarded as insufficiently trained in the relevant procedure. Mr Jamil's instruction was therefore that the Claimant should have read at least 95% of the core documents at any given time in order to ensure that he was adequately trained in essential areas.
- (c) *Be signed-off on prep and scheduling, or on IDF.* Preparation and Scheduling is another of the Respondent's training requirements and it relates to the steps that immediately follow the AKTA ready module. In Process Filtration is the Respondent's generic procedure for filtering

products in the purification area. Both training requirements were therefore essential to the Claimant's role.

10. It is denied that these targets were "disproportionately high" or, indeed, unreasonable, different or materially different to what the Respondent required of other Biotechnologists in probation in the purification suite.
11. It was necessary and reasonable for Mr Jamil set the above targets because his completion of mandatory training had been delayed by a lack of resources which had nothing at all to do with the Claimant's health or alleged disabilities.
12. If necessary, the Respondent will aver that Mr Jamil's treatment of the Claimant was a proportionate means of achieving one or more legitimate aims including, relevantly:
 - (a) Including, given the nature of his role, the reasonable requirement that employees undertake mandatory training and attain competence to complete their technical role; and
 - (b) The compliance and safety of pharmaceutical products and the Respondent's ability to evidence the same; and
 - (c) The proper management of performance and probationary periods.

Treatment of Health-related absences

13. The complaint that the Claimant's health-related absences were "exaggerated" and "linked to reliability" is not clear. The Claimant is required to specify:
 - (a) The dates of each health-related absence to which he refers (and if partial days, the times of absence);

- (b) The cause of each health-related absence to which he refers;
- (c) The name of the person who “exaggerated” his sickness absence, what they said/did, when, and the specific absence to which he refers in this context;
- (d) The name of the person who “linked” those absences to reliability”, what they said/did, when, and the specific absence to which he refers in this context; and
- (e) In each case, the form of discrimination relied upon.

14. Meanwhile, the Claimant’s complaint is denied.

Lack of timely Occupational health referral or risk assessment – ss. 20-21 Equality Act 2010

15. This complaint is not understood in the context of sections 20 and 21 of the Equality Act 2010 (“Duty to make adjustments” and the “Failure to comply with duty”). The Claimant is required to specify:

- (a) The “repeated reports” to which he refers – including for each: the date of the report, who made it, how, and to whom;
- (b) The “medical evidence” to which he refers – including for each: the nature of the evidence, its author, who conveyed it to the Respondent, when, and the name of the person who received it;
- (c) In terms of the Claimant’s references to “occupational health referrals” he is required to specify:
 - (i) The provision, criterion or practice relied upon;
 - (ii) The impairment upon which he relies;

- (iii) The substantial disadvantage upon which he relies and related comparators;
 - (iv) For each occasion when he alleges the Respondent “refused” to refer him to occupational health – the name of the person who refused, how the refusal was conveyed (e.g. oral/written), and when
 - (v) Where he complains of untimely referrals – the date when he alleges a referral should have been made; and
 - (vi) On each occasion he alleges the Respondent should have made a referral, the particular issue he contends the Respondent should have asked occupational health to address;
- (d) In terms of the Claimant’s references to “risk assessments” he is required to specify:
- (i) The provision, criterion or practice relied upon;
 - (ii) The impairment upon which he relies;
 - (iii) The substantial disadvantage upon which he relies and related comparators;
 - (iv) For each occasion when he alleges the Respondent “refused” to carry out a risk assessment – the name of the person who refused, how the refusal was conveyed (e.g. oral/written), and when;
 - (v) The safety-critical work which, on the Claimant’s case, warranted a risk assessment;
 - (vi) The date when he alleges that the Respondent should have undertaken a risk assessment; and

- (vii) The particular risks he alleges the Respondent should have considered.

16. This complaint is denied in its entirety. Further:

- (i) It is denied that ss. 20-21 Equality Act 2010 placed the Respondent under any obligation to refer the Claimant to occupational health or carry out a risk assessment (either as may be alleged or at all). It is denied that those can constitute “steps” within the meaning of s. 20-21 Equality Act 2010. The remainder of this section is pleaded without prejudice to such denials;
- (ii) It is denied that the Respondent is liable for any acts or omissions of its external occupational health provider;
- (iii) It is averred that the Respondent did in fact make two referrals to its external occupational health provider early in the Claimant’s employment;
- (iv) The Respondent made the first referral as a result of matters that the Claimant had declared on his ‘new hire form’. The provider invited the Claimant to an initial appointment on 27 August 2025 but the Claimant did not attend. The appointment was then rescheduled to September, but the provider rescheduled it to 8 October 2025 on account of the doctor’s illness. Dr Tahir assessed the Claimant face-to-face on 13 November 2025 and provided an occupational health report on 14 November 2025. Dr Tahir recorded that the Claimant’s self-reported health condition (schizophrenia) is “well-managed and currently stable” but made four recommendations: (i) completing a Wellness Action Plan, (ii) completing a work-related stress risk assessment, (iii) allocating the Claimant a desk in quieter working environment and (iv) providing agendas in advance of

meetings wherever possible. Dr Tahir noted: “We should not need to see Mr Minhas routinely but would of course be happy to review him should you request it”;

- (v) The Respondent made a second referral in October 2025 after learning that the Claimant had suffered an eye complaint. Dr Tahir assessed the Claimant by telephone on 28 October 2025. He reported that the treatment the Claimant had received (ointment) was effective, the condition had resolved, and no adjustments were needed; and
- (vi) It is averred that the Respondent made the referrals timeously and carried out all necessary risk assessments.

No adjustments offered - ss. 20-21 Equality Act 2010

17. This complaint is unclearly pleaded. For each adjustment that the Claimant alleges the Respondent failed to make, the Claimant is required to specify:

- (a) The provision, criterion or practice relied upon;
- (b) The impairment upon which he relies;
- (c) The substantial disadvantage upon which he relies and related comparators;
- (d) The step which he claims the Respondent should have undertaken; and
- (e) When the Respondent should have undertaken that step.

18. In the meantime, it is denied that the Respondent failed to make adjustments (either as may be alleged or at all) and the Claimant is put to strict proof accordingly.

Public shaming about lateness and health by ‘Manager 2’ – s. 26 Equality Act 2010

19. This complaint is inadequately particularised in all the circumstances. In addition to identifying “Manager 2”, the Claimant is required to specify for each allegation:

- (a) Precisely what “Manager 2” said;
- (b) The date, time and location;
- (c) If not obvious from the context, the lateness to which he alleges the remark relates;
- (d) If not obvious from the context, the health matters to which he alleges the remark relates;
- (e) If not obvious from the context, why it was “shaming”; and
- (f) The names of the other people (if any) present.

20. Meanwhile, it is denied that “Manager 2” or any other employee of the Respondent shamed the Claimant publicly in an open-plan office about lateness and/or health, either as may be alleged or at all.

Intrusive questioning and public humiliation by ‘Manager 1’

21. While the Respondent infers that this is a complaint brought by reference to s. 26 Equality Act 2010, it requires further and better particulars in order for the Respondent to respond to it properly. The Claimant is required to state for each allegation:

- (a) Precisely what was said;

- (b) The name of the person who said it;
- (c) The date, time and location each question or public humiliation;
- (d) The names of other people present (if any); and
- (e) If not obvious from the context, the relevance to the Claimant's alleged disability.

22. In the meantime, it is denied that any of the Respondent's employees questioned the Claimant intrusively or humiliated him (in relation to his alleged disability or at all) or, in the alternative, that such conduct amounted to harassment contrary to s. 26 Equality Act 2010 or otherwise.

Conduct created an intimidating, hostile and degrading environment

23. The Claimant makes this allegation without any supporting facts or evidence. The Respondent presumes this is a complaint for harassment and is brought by reference to s. 26 Equality Act 2010, but in any event it requires further and better particulars. The Claimant is required to state for each allegation:

- (a) Precisely what was conduct is alleged;
- (b) The date, time and location of such conduct;
- (c) The names of any individual accused of such conduct; and
- (d) If not obvious from the context, the relevance to the Claimant's alleged disability.

24. In the meantime, it is denied that any of the Respondent's employees harassed the Claimant in relation to his alleged disability or at all or that the Claimant was

subject to any conduct which amounted to harassment contrary to s. 26 Equality Act 2010 or otherwise.

Victimisation

25. It is admitted that the Claimant raised a grievance and that it amounted to a protected act for the purposes of s. 27(1) Equality Act 2010, however he raised his grievance on 6 October 2025 (not 15 October 2025, as alleged) and he supplemented it on 7 & 13 October 2025.
26. The complaint that the Respondent subjected the Claimant to “intense scrutiny and negative comments” is denied and is inadequately pleaded. In order that the Respondent may respond to the complaint properly, the Claimant is required to specify for each allegation:
- (a) Precisely what was said;
 - (b) The name of the person who said it;
 - (c) The date, time and location of any intense scrutiny or negative comments;
 - (d) The names of other people present (if any); and
 - (e) If not obvious from the context, why the scrutiny or comment was made on the ground that the Claimant had raised a grievance.
27. In the meantime, it is denied that any of the Respondent’s employees subjected the Claimant to any scrutiny or negative comments. Further or alternatively, it is denied that they did so as a result of the Claimant’s grievance.

Requests for interim measures the refusal of suspension or reassignment of line managers

28. It is unclear under what section of the Equality Act 2010 this complaint is brought. As such, the Claimant is required to specify what this claim is and under what section of the Equality Act 2010 it is brought. In the meantime, all claims related to this allegation are denied.
29. While it is admitted that the Respondent refused the Claimant's request to suspend or reassign his line manager, it is denied that this constituted a "detriment" or that it was because the Claimant had done a protected act. The Respondent considered the Claimant's request on its merits and rejected it for objective and justifiable reasons, including the fact that his contact with his manager would be limited anyway on account of their respective shift patterns.

Health & Safety Breach

30. The Tribunal lacks jurisdiction to determine any complaint that the Respondent had breached the Health and Safety at Work etc. Act 1974 and it is misconceived in the premises. In any event, the Claimant's allegation under this heading is denied.

Data Protection breach

31. The Tribunal lacks jurisdiction to determine any complaint that the Respondent had breached the Claimant's rights under the General Data Protection Regulation and it is misconceived accordingly. In any event, the Claimant's allegation under this heading is denied.

The Claimant's grievance

32. The Claimant attended a grievance hearing with Suzanne Kennedy-May (Director, Asset Transition Lead) on 3 November 2025. Ms Kennedy-May carried out an investigation into the Claimant's allegations and delivered an outcome to the Claimant on 10 November 2025 in which she rejected or materially rejected his complaints.
33. The Claimant appealed against Ms Kennedy-May's decision and attended a grievance appeal hearing with Nic Murrell (End to End Lead, Business Transformation) on 27 November 2025. Mr Murrell considered the Claimant's grounds of appeal carefully and on 5 December 2025 he wrote to reject the Claimant's appeal.

Denial

34. For the avoidance of doubt, all of the Claimant's claims are denied. If and to the extent that there are any allegations in the ET1 which have not been specifically addressed in these Grounds of Resistance, they too are denied. It is further denied that the Claimant is entitled to any of the remedies claimed, either for the reasons alleged or at all.
35. The Respondent respectfully reserves its right to amend and update these Grounds of Resistance depending on any further and better particulars provided by the Claimant.

Draper Lang LLP
Solicitors for the Respondent
18 February 2026